
Appeal Decision

Site visit made on 2 September 2026

by **P Barton BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 23 September 2026

Appeal Ref: 6008804

Overs Farm, Church Lane start of to Haughton Farm junction, Tasley, Bridgnorth, Shropshire WV16 4RF

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr and Mrs Tranter against the decision of Shropshire Council.
 - The application Ref is 25/04206/FUL.
 - The development proposed is described as “Siting of five Wigwam cabins for holiday use on a parcel of land at Overs Farm, Haughton, Bridgnorth. The proposal also includes the use of an existing timber cabin as a reception/office facility, the provision of parking spaces within the existing yard area and a private treatment plant for foul drainage”.
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. A new version of the National Planning Policy Framework (the Framework) was published on 17 August 2026. The main parties were given the opportunity to comment, and the comments received have been taken into account in the determination of the appeal.

Main Issue

3. The main issue is whether the site would be in a suitable location for the proposed development, having regard to the spatial strategy in the development plan, and accessibility to services and facilities.

Reasons

4. Policy CS1 of the Shropshire Local Development Framework: Adopted Core Strategy (March 2011) (CS) sets out that in rural areas, development will be located predominantly in community hubs and community clusters, and outside these settlements they will primarily be for, amongst other things, economic diversification. CS Policy CS5 lists criteria for suitable development in the countryside, of which one relates to sustainable rural tourism and leisure and recreation proposals, which require a countryside location. This is subject to compliance with CS Policy CS16, which in turn includes visitor accommodation in accessible locations served by a range of services and facilities, and stipulates that proposals be close to or within settlements, or an established and viable tourism enterprise where accommodation is required. This policy context provides a distinction between development that supports or diversifies existing rural enterprises and new standalone commercial uses.

5. Located in the countryside, the proposed cabins would be positioned on a parcel of land that contains fruit trees and is mainly enclosed by high vegetation. Adjacent to this, and also within the appeal site, is a track accessed off the adjoining highway, leading to an existing area of hardstanding where a number of modest structures are positioned, including an existing timber cabin that would be used as an office/reception. To the immediate west is Overs Farm, a detached 2-storey dwelling, and surrounding the appeal site are predominantly open fields.
6. There is no substantive evidence before me to demonstrate that Haughton and Tasley are settlements and there is very limited information in terms of local public transport services. Bridgnorth appears to be the closest settlement with a range of services and facilities, which is a noticeable distance from the site. Therefore, I have found that the site is neither close to nor within a settlement.
7. Moreover, access to Bridgnorth is via a narrow country lane with no footpaths or street lighting, and not an attractive environment for all but experienced walkers and cyclists, particularly in the dark and during poor weather conditions. Consequently, visitors to the proposed development would be heavily reliant on private cars. Although rural areas are unlikely to have the same level of public transport as urban areas, this does not give reason to locate development within locations that are inherently inaccessible by means other than private car.
8. I understand that until 2000, the site was run as a pig farm, by previous owners, and the area not within the appeal site or the farmhouse now consists of woodland and a grassland field. The appellants state that they are keen to develop a tourism enterprise at Overs Farm. Based on the evidence before me there is no established and viable tourism enterprise on the site.
9. Although the appellants identify that the intention is to become part of a franchise, which has a significant number of locations across Britain, there is nothing before me preventing the proposed holiday accommodation from not operating under the franchise. Taking all the factors into account, including the nature of the franchise business model, I am not persuaded that the proposal relates to an established and viable tourism enterprise.
10. Whilst it is argued that a rural setting is necessary for this type of proposal and visitors could use the adjoining woodland, there is no compelling case before me that the proposal is required in this particular location. I appreciate the appellants wish to operate the holiday accommodation from the site to assist in securing the woodland's long-term future. However, this does not negate the development plan's locational requirement to be close to or within a settlement with access to a range of services and facilities.
11. For the reasons given, the site would not be in a suitable location for the proposed development, having regard to the spatial strategy in the development plan, and accessibility to services and facilities, and contrary to CS Policies CS1, CS5 and CS16. I have also found conflict with CS Policies CS6 and CS13, as well as Policy MD11 of the Shropshire Council Site Allocations and Management of Development (SAMDev) Plan (17 December 2015) (SAMDev Plan). Together, these policies, amongst other things, support green tourism, and seek an accessible environment, where opportunities for walking, cycling and use of public transport can be maximised and the need for car-based travel can be reduced, as well as compliance with CS Policies CS5 and CS16.

12. The reason for refusal includes SAMDev Plan Policies MD2 and MD7a, which relate to sustainable design and housing developments in the countryside. I have found these policies, as well as whether the proposed structures would conform with the legal definition of a caravan, not to be determinative in the consideration of this main issue.

Planning Balance

13. The appeal site would not be in a suitable location for the proposed development, having regard to the spatial strategy in the development plan, and accessibility to services and facilities. I have found that the proposal would conflict with the development plan as a whole.
14. As a result of the site's location outside of a settlement, policy S5 of the Framework is relevant. It lists certain forms of development that should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework. If development proposals do not fall within one of the categories set out in policy S5, they should only be approved in exceptional circumstances, where the benefits of the proposal would substantially outweigh the adverse effects, including to the character of the countryside and in relation to promoting sustainable patterns of movement.
15. Paragraph 2 of Annex A of the Framework states that development plan policies should not be given reduced weight simply because they were adopted prior to the publication of the Framework. The spatial strategy set out in CS Policies CS1, CS5, CS6, CS13 and CS16 and SAMDev Plan Policy MD11 is consistent with the Framework's aim in locating development where it can support sustainable patterns of development, particularly policy TR3. Despite the requirement for a rural location, there is no compelling argument that the nature of the development would make it impractical to limit the need to travel, particularly by private car, and offer a genuine choice of transport modes. Moreover, there are no details before me that opportunities exist to improve walking, wheeling, cycling and public transport, and enhance the connectivity of the area. Consequently, due to a lack of genuinely sustainable travel choices, I afford very substantial weight to this conflict.
16. A lack of harm or policy compliance in respect of the effect of the proposal on the character and appearance of the area, as well as the highway, would have a neutral effect which neither weigh for nor against the proposal.
17. On the other side of the balance, there would be benefits associated with the development. In line with Policy E2(1) of the Framework, substantial weight is given to the economic benefits, which would include the period of construction and the accommodation's occupation by visitors. Further benefits would be in the form of the appellants' ambition to create a legacy to help secure the woodland's long-term future and enable visitors to access this land. Moreover, Policy E4(1)(b) and (c) supports the diversification of land-based businesses as well as rural leisure and tourism. However, as there is no cogent case as to why the proposal needs to be located where it is not well served by public transport, policy E4(2) offers minimal support, even though the proposal would utilise an existing structure.
18. I recognise that the accommodation would be for those who wish to experience a countryside location. For the purposes of my assessment, accepting that S5(1)(b)

applies, and a location outside a settlement is necessary, balancing all considerations and having regard to the scale of the proposal, the benefits would be substantially outweighed by the adverse effects, when assessed against the national decision-making policies in the Framework.

19. For completeness and applying S5(4), the benefits would not substantially outweigh the adverse effects, and exceptional circumstances have not been demonstrated.
20. Therefore, in either scenario, the presumption in favour of sustainable development set out in policy S5 of the Framework does not apply.

Conclusion

21. The proposal conflicts with the development plan as a whole and the material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal is dismissed.

P Barton

INSPECTOR